

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on December 18, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Erasure against IBERDROLA CLIENTES, S.A.U. (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that they requested the erasure of their personal data in accordance with the provisions of the privacy policy of the respondent, which includes not only Iberdrola Clientes but also its dependent companies, on July 30, 2023, receiving a response confirming said erasure on August 7, 2023.

However, they indicate that they received various subsequent communications, specifically: on October 13, 2023; on November 22, 2023, a phone call (specifying the number and time of the call); and on December 12, 2023, advertising sent to their email.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on March 18, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, so that within a period of fifteen working days, they could present the allegations they deemed appropriate, summarizing the following allegations:

The respondent states that they have addressed the right and indicates the response sent to the complainant in August 2023.

They show and clarify certain aspects of their internal organization regarding data protection and conclude:

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“...in the considerations presented in the response sent on April 25, 2024, IBERCLI and I-DE Redes Eléctricas Inteligentes, S.A.U., are two distinct companies belonging to the same business group, the IBERDROLA Group, thus complying with the provisions of Article 37.2 of the GDPR which states that “a business group may appoint a single data protection officer provided that they are easily accessible from each establishment.”

Additionally, my client has conducted the necessary analyses again and has been able to verify that no advertising has been sent to the Complainant from IBERCLI. In this case, IBERCLI managed the exercise of the right of erasure in accordance with the regulations, providing the corresponding response, and as evidenced by the evidence presented by the complainant, IBERCLI is not identified as the sender of the communications sent in any case.

In light of the above and the considerations already presented by IBERCLI in April 2024, their diligent action at all times is sufficiently evidenced, and no breach of the applicable data protection regulations has occurred on the part of IBERCLI...”

In the allegations presented, the response to the complainant is not documented.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within a period of ten working days, they may formulate any allegations they deem appropriate.

The complainant expresses their disagreement regarding the respondent's compliance with their right of erasure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

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In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring them to respond to this Agency within one month and to demonstrate that they had provided the complainant with the appropriate response.

The outcome of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on March 18, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline to resolve the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers

for the purpose of remedying any infringement of the GDPR, including “ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD.

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considering the rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Deletion

Article 17 of the GDPR, which regulates the right to deletion of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the deletion of personal data concerning them without undue delay, and the data controller shall be obliged to delete personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this processing is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be deleted for compliance with a legal obligation under Union or Member State law applicable to the data controller;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of its application, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for deletion of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;

- b) for compliance with a legal obligation which requires processing by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

V

Conclusion

During the processing of this procedure, the entity being complained about has responded to this Agency, but does not demonstrate having addressed the request made by the complainant despite the numerous communications made between the parties, according to the documentation submitted by the complainant.

In its allegations, the entity being complained about provides a detailed account of what happened and mentions IBERCLI, but does not document having effectively addressed the complainant's request for deletion.

Although the complainant did not address the indicated party to request the right to deletion, once this was known, through the communication made by this Agency, among others, the entity being complained about not only has to effectively address the right but also to prove it.

The complainant, from their first request, shows that they received a response from the entity being complained about but also shows how, despite claiming to have deleted the data, they received new communication or calls a few months later.

The entity being complained about provides a series of unclear explanations regarding why, despite claiming to have deleted the data, the complainant continues to receive advertising and commercial calls, and does not substantiate the explanations in its allegations.

Therefore, in light of the lack of effectiveness of the "deletion" carried out by the entity being complained about, and the lack of substantiation of the response to the complainant, this complaint is upheld.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Data Protection Agency RESOLVES:

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FIRST: TO ESTIMATE the claim made by A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge IBERDROLA CLIENTES, S.A.U. with NIF A95758389, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the causes for which the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A. and to IBERDROLA CLIENTES, S.A.U.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish

Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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